



Bill Number: S.B. 1141

Finchem Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Requires a presidential elector to cast an electoral college vote for an appropriate successor candidate who is properly nominated by the party of the winning candidate in the event of a winning candidate for U.S. President or Vice President becoming incapacitated, in addition to dying or withdrawing before the date that presidential electors are scheduled to meet.

FINCHEM FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1141
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-212, Arizona Revised Statutes, is amended to
3 read:

4 16-212. Election of presidential electors; electoral college
5 votes; vacancy; replacement

6 A. On the first Tuesday after the first Monday in November, 1956,
7 and quadrennially thereafter, there shall be elected a number of
8 presidential electors equal to the number of United States senators and
9 representatives in Congress from this state.

10 B. After the secretary of state issues the statewide canvass
11 containing the results of a presidential election, the presidential
12 electors of this state shall cast their electoral college votes for the
13 candidate for president and the candidate for vice president who jointly
14 received the highest number of votes in this state as prescribed in the
15 canvass, EXCEPT IF A WINNING CANDIDATE FOR PRESIDENT OR VICE PRESIDENT IN
16 THIS STATE DIES[.] [OR] WITHDRAWS [OR BECOMES INCAPACITATED] BEFORE THE
17 DATE ON WHICH THE PRESIDENTIAL ELECTORS ARE SCHEDULED TO MEET AND CAST
18 THEIR VOTES, THE PRESIDENTIAL ELECTORS SHALL CAST THEIR ELECTORAL COLLEGE
19 VOTES FOR THE SUCCESSOR CANDIDATE FOR THAT OFFICE WHO IS NOMINATED BY THE
20 DECEASED OR WITHDRAWN CANDIDATE'S POLITICAL PARTY AS PRESCRIBED BY THAT
21 POLITICAL PARTY'S RULES.

22 C. A presidential elector who ~~knowingly~~ refuses to cast that
23 elector's electoral college vote as prescribed in subsection B of this
24 section is no longer eligible to hold the office of presidential elector
25 and that office is deemed and declared vacant by operation of law. IF A
26 PRESIDENTIAL ELECTOR IS NOT PRESENT TO VOTE AT THE MEETING OF THIS STATE'S
27 PRESIDENTIAL ELECTORS, THAT PRESIDENTIAL ELECTOR'S OFFICE IS ALSO DEEMED
28 VACANT. TO FILL ANY VACANCY IN THE OFFICE OF PRESIDENTIAL ELECTOR, the
29 chairperson of the state committee of the political party represented by

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1 that elector shall appoint a person who is otherwise qualified to be a
2 presidential elector. The replacement presidential elector shall cast the
3 elector's electoral college vote as prescribed by this section.
4 Notwithstanding section 16-344 and any other statute, the nomination paper
5 and affidavit of qualification of the replacement presidential elector may
6 be completed and filed with the secretary of state as soon as is
7 practicable after the presidential elector's appointment.

8 Enroll and engross to conform
9 Amend title to conform

MARK FINCHEM

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